



Merit Disciplinary Policy

Version No.	Ver 1.3	Release date: 01-July-24
Details	Name & Job Role	Date
Prepared by	Keith Cleur – Senior HR Manager – HR Gladson Samuel Richard – Senior HR Manager	01 July 24
Reviewed by	Bindu Muralidharan– Head of HR	01 July 2024
Approved by	Bindu Muralidharan– Head of HR	16 July 2024
File name & Location	Merit Disciplinary Policy_v1.3 01July2024_(INT) - P:\HRBP\Documents\Policies\Word Document	

CHANGE HISTORY

Author	Approved By	Change Description	Version No.	Release Date
Keith Cleur Gladson Richard	Ramani S	First draft	V1.0	26 Mar 2021
Keith Cleur Gladson Richard	Ramani S	Policy revision, format and logo change	V1.1	23 Jun 2021
Bargav N B	Gladson Richard	Logo Change , Format Change	V1.2	25 May 2022
Keith Cleur Gladson Richard	Bindu M	Policy Update	V1.3	01 July 2024

1. PROJECT SCOPE

Purpose

Merit's discipline policy and procedures are designed to provide a structured corrective action process in conjunction with other company policies to improve and prevent a recurrence of undesirable employee behavior and to address performance issues.

Outlined below are the steps of Merit's discipline policy and procedures and the resultant consequences of being found guilty of committing any offence under any policy. Merit reserves the right to combine or skip disciplinary steps depending on the facts of each situation and the nature of the offense. Some of the factors that will be considered are whether the offense is repeated despite coaching, counseling or training; the employee's work record; and the impact the conduct and performance issues have on the organization.

The Discipline Policy will be used when an employee commits any or all the following offences:

Violation of any Merit Policy

Inappropriate, disruptive, aggressive or unprofessional behavior which is not in keeping with the Merit Values

- Fraud or gross misconduct
- Any reasons for termination mentioned in the Separation Policy
- Any information security violation – refer Point 2
- Client Poaching – refer point 3

2. Data Theft

All data stored on Company servers or in Company databases or is used by the Company in any way is the sole and rightful property of the Company and should not leave the office premises without being authorized by a member of the Senior Leadership Team (SLT). Any unauthorized usage or removal of the said data is punishable by immediate termination and could involve criminal proceedings against the person

Willful disclosure of Company data to unauthorized parties

All data stored on Company servers or in Company databases or is used by the Company in any way is the sole and rightful property of the Company and should not be disclosed to any person or 3rd party who are not authorized to see or use this data without being authorized by a member of the SLT. Any unauthorized usage or removal of the said data is punishable by immediate termination and could involve criminal proceedings against the person

Willful destruction of Company data

All data stored on Company servers or in Company databases or is used by the Company in any way is the sole and rightful property of the Company. Any willful destruction of such data is punishable by immediate termination and could involve criminal proceedings against the person

3. Client Poaching

Employees will sometimes come into direct or indirect contact with Merit clients in course of their work or otherwise. Employees during their employment with Merit will desist from interfering with, solicit or endeavor to negotiate with any Merit client for the purpose of taking away any business that Merit or the client are engaging in. Any such poaching of Merit's clients will result in immediate termination and legal proceedings being initiated against them.

4. PROCESS DESCRIPTION AND WORKFLOW

Procedure

Step 1: Counselling and verbal warning

Step 1 creates an opportunity for the immediate supervisor to bring attention to the existing performance, conduct or attendance issue. In the first instance, if the offence is not serious (e.g.: sporadic unplanned leave, late login, tardiness, break exceeding stipulated time affecting performance, etc.) the immediate manager will counsel the employee and keep the HR Business Partner (HRBP) informed. If the same offence is repeated, supervisor with the HRBP in attendance should discuss with the employee the nature of the problem or the violation of company policies and procedures. The supervisor is expected to clearly describe expectations and steps the employee must take to improve his or her performance or resolve the problem. The manager will send HR the document of the proceeds of the verbal warning. HR will ensure that the verbal warning is documented in the employee's file within 48 hours of providing the verbal warning. Depending on the impact of the offence, a maximum of two verbal warnings for the same offence will be allowed at the discretion of the reporting manager in concurrence with the HRBP.

Step 2: Written warning

The Step 2 written warning involves more-formal documentation of the performance, conduct or attendance issues and consequences.

During Step 2, the immediate supervisor and/or the team manager and the HRBP or HR Manager (depending on the severity of the issue) will meet with the employee to review any additional incidents or information about the performance, conduct or attendance issues as well as any prior relevant corrective action plans. Management will outline the consequences for the employee, of his or her continued failure to meet performance or conduct expectations.

A formal written warning or a performance improvement plan (PIP) or both requiring the employee's immediate and sustained corrective action will be initiated within three business days of a Step 2 meeting. The written warning may also include a statement indicating that the employee may be subject to additional discipline, up to and including termination, if immediate and sustained corrective action is not taken by the employee to improve.



Warning Letter
Template.docx

Step 3: Suspension and final written warning

If the issue of performance, conduct or behavioral incidents are so problematic and harmful that they could have far reaching and very serious consequences, then the most effective action will be the temporary removal of the employee from the workplace. When immediate action is necessary to ensure the continuation of business, the immediate supervisor will at once bring this to the attention of HR and Senior Management. HR will suspend the employee until the investigation into the incident is completed. Suspensions that are recommended as part of the normal sequence of the progressive discipline policy and procedures are subject to approval from the Head of the Division and HR. Depending on the seriousness of the infraction, the employee may be suspended with or without pay in full-day increments consistent with labour and employment laws. HR will provide guidance to ensure that the disciplinary process is administered without jeopardizing or contravening any labour or employment laws. If the employee is suspended without pay, pay will be restored to the employee, with arrears, if an investigation of the incident or infraction absolves the employee of wrongdoing.



Suspension Letter Template.docx

Step 4: Recommendation for termination of employment

The last and most serious step in the discipline process is a recommendation to terminate employment. Management will try to exercise the progressive nature of this policy by first providing warnings, issuing a final written warning or suspending the employee from the workplace before proceeding to a recommendation to terminate employment. However, Merit reserves the right to combine and skip disciplinary steps depending on the circumstances of each situation and the nature of the offense. Furthermore, employees may be terminated without prior notice to them, with or without pay. Any recommendation from the Team Manager to terminate an employee should be backed with evidence and approved by the Head of HR and the Head of the respective Division or the Managing Director.

Appeals Process

Employees will have the opportunity to dispute the basis on which disciplinary action is taken by providing relevant information. The purpose of this process is to provide insight into extenuating circumstances that may have contributed to the employee's performance or conduct issues while allowing for an equitable and fair solution. The employee will have three business days to present their case with data and evidence after the step2 meeting where necessary, and at the discretion of the HR team.



Disciplinary Complaint
Appeal F

Performance and Conduct Issues Not Subject to Progressive Discipline

Behavior that is illegal or extremely serious is not subject to progressive discipline and may result in immediate termination. Such behavior may be reported to local law enforcement authorities. Similarly, theft, substance abuse, intoxication, fighting and other acts of violence at work are also not subject to progressive discipline and may be grounds for immediate termination.

Documentation

The employee will be provided with all progressive discipline documentation, including Performance Improvement Plans (PIP). The employee will be asked to sign copies of this documentation when necessary, attesting to his or her receipt and understanding of the corrective action outlined in these documents. Copies of these documents will be placed in the employee's official personnel file.

5. COMMUNICATION

Communication of the policy will be done through MKconnect, Townhalls or HR Connect emails.

6. DISCIPLINE HANDLING MATRIX

Since discipline is basically the behavior of human beings each case of discipline will be unique and has to be dealt with accordingly. Below is a broad sample of disciplinary issues and how they will be dealt with. The matrix below is only a guide.

Key	Level of Action
Verbal warning (VW)	First Level
Written Warning / PIP (WW / PIP)	Second Level
Suspension (S)	Third Level
Termination (T)	Final Level

Categories	Descriptions (the list of sample infractions below is non-exhaustive)	Applicable Policy/s	Violation			
			1st	2nd	3rd	4th
Attendance	Excessive unplanned leave and/or tardiness issues, Sleeping on the job, not attending meetings	Code of Conduct Policy / Leave Policy	VW	WW / VW	WW / T	T
	Unauthorized leave		VW	WW	T	
	Abandoning work (not absconding)					
	Leaving the work premise during work hours without obtaining permission from the supervisor		VW	WW	WW	T
	Not returning to work following a break/lunch period		VW	WW	WW / T	T
	Walking out of work without explanation or permission		WW	T		
Behaviour	Inappropriate computer use	Data Confidentiality Policy / Separation Policy /				
	Inappropriate access		VW	WW	T	
	Sharing password		VW	WW	T	
	Excessive personal use		VW	WW	T	

	Pornography (+)	Acceptable Use Policy / Code of Conduct	T			
	Data Breach		T			
	Data Theft		T			
	Inappropriate use of property	Separation Policy / Code of Conduct Policy				
	Unauthorized and willful destruction of property	Separation Policy / Bullying, Discrimination & Harassment Policy / Code of Conduct Policy / POSH Policy	WW/ T	T		
	Unprofessional Behaviour					
	Insubordination		VW	WW	T	
	Violent behaviour or threat of violence (+)		WW	T		
	Abusive/profane language		WW	WW	T	
	Bullying (+)		WW / T	T		
	Behaviour violating Merit Values - ASPIRE		VW	WW	WW / T	T
	Safety violation					
	Gross negligence resulting in safety hazards		WW	WW	T	
	Discrimination of any kind		WW	T		
	Sexual Harassment		WW / T	T		
	Possession of lethal weapon on campus in violation of policy		WW / T	T		
	Dishonesty, Fraud, and Conflicts of Interest		WW / T	T		
	Unfavorable BGV		WW / T			
	False request for reimbursement, or falsification of any reimbursement claims		WW / T	T		
	Willful falsification of documents/reports		WW / T	T		
	Conflict of Interest violation		WW / T	T		
	Theft		WW / T	T		
	Possession or use of illegal drugs and/or alcohol on Company premises or deemed premises (Except Company approved venues)		T			
	Breach of confidentiality		WW / T	T		
	Inappropriate use of access to information		VW / WW	WW / T	T	

	Sharing confidential information with individuals who do not have a business need to know		WW / T	T		
	Accessing/changing personal record for gain		T			
	Criminal / illegal activity on campus		T			
Performance	Inappropriate use of work time	Separation Policy / Performance Management Policy				
	Working unauthorized time		VW	VW / WW	WW	T
	Sleeping on the job		VW	WW / VW	WW / T	T
	Willful poor performance					
	Not meeting performance goals		VW	PIP	T	
	Negligence		VW WW	WW / T	T	
	Incompetence/lack of skills necessary to perform the job		Counseling	WW	T	
	Failure to meet any conditions of employment		WW / VW	S	T	
	Committing a misdemeanor/felony related to position		WW / T	S / T	T	
	Failure to report sexual misconduct or gender discrimination	POSH Policy / Equality and Diversity Policy	WW	S / T		
Information Security & Client Poaching	Data Theft	Separation Policy / Performance Management Policy				
	Stealing Company owned information		T			
	Willful disclosure of Company Information		T			
	Willful destruction of Company owned information		T			
	Client Poaching		T			